

jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.”

The fundamental defect in Defendant’s motion is that there is no service to quash. A motion to quash service of summons presupposes that service has been attempted and a proof of service, whether valid or defective, has been filed claiming that service was completed. Here, the only document on record is a Declaration of Non-Service explicitly stating that the process server was “unable to effect service.” Both parties agree that service has not been completed. Section 418.10 authorizes motions to “quash service of summons,” not to quash declarations of non-service or to obtain advisory rulings on whether future service attempts will be valid. Because no service has been completed or claimed, there is no jurisdictional act for the court to review and no justiciable controversy before the court. The court cannot quash that which does not exist. I recommend the Court deny the motion without prejudice.

Defendant’s Motion is **DENIED without prejudice**.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2208182	WELLS FARGO BANK VS ROMERO	MOTION TO VACATE DISMISSAL & ENTER JUDGMENT PURSUANT TO STIPULATION BY WELLS FARGO BANK

Tentative Ruling: Motion unopposed. Motion **GRANTED**. Court to sign the proposed order and the proposed judgment.